

FAR PROVISIONS FOR SOLICITATION – SERVICES (NON-CONSTRUCTION)

FAR 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements—Representation (JAN 2017)

FAR 52.204-7, System for Award Management (NOV 2024)

FAR 52.204-16, Commercial and Government Entity Code Reporting (AUG 2020)

FAR 52.204-17, Ownership or Control of Offeror (AUG 2020)

FAR 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations—Representation (NOV 2015)

FAR 52.212-1, Instructions to Offerors—Commercial Products and Commercial Services (SEP 2023)

Subcontractor Disclosure and Evaluation

Offerors shall identify any subcontractors proposed to perform more than 20 percent of the total contract value or any critical elements of performance. The submission shall include, at a minimum, the subcontractor's name, business size, and a brief description of the work to be performed. The Government will evaluate the offeror's proposed use of subcontractors as part of its assessment of technical capability and performance risk, including the offeror's ability to manage subcontracted effort and ensure timely, compliant performance. The prime contractor shall remain fully responsible for contract performance, regardless of the use of subcontractors. Failure to identify a subcontractor in the offer does not relieve the prime contractor of responsibility for compliance with all applicable contract requirements.

FAR 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services (NOV 2023)

FAR 52.219-1, Small Business Program Representations (JAN 2025)

FAR 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020)

FAR 52.204-29 — Federal Acquisition Supply Chain Security Act Orders—Representation and Disclosures (DEC 2023)

(a) Definitions. As used in this provision—

“Covered article” means any information technology or operational technology, product, service, or system, including hardware, software, or firmware, that is the subject of a Federal Acquisition Security Council exclusion or removal order.

“Federal Acquisition Security Council” means the council established pursuant to section 1322(a) of title 41, United States Code.

“FASCSA order” means an exclusion or removal order issued pursuant to the Federal Acquisition Supply Chain Security Act of 2018 (41 U.S.C. 4713).

(b) Representation. The Offeror represents that—

(1) It ☐ is, ☐ is not subject to an active exclusion or removal order issued pursuant to the Federal Acquisition Supply Chain Security Act of 2018.

(2) If the Offeror represents that it “is” subject to such an order, the Offeror shall—

(i) Identify the covered article(s); and

(ii) Provide any additional information required by the Contracting Officer.

(c) Disclosure. If the Offeror becomes subject to an exclusion or removal order after submission of its offer, the Offeror shall disclose that information to the Contracting Officer immediately.